

LEGISLATURE OF THE STATE OF IDAHO  
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 698

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO VOTING; AMENDING SECTION 18-310, IDAHO CODE, TO REVISE A PROVISION REGARDING VOTING BY PERSONS CONVICTED OF FELONIES IN OTHER STATES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-310, Idaho Code, be, and the same is hereby amended to read as follows:

18-310. IMPRISONMENT -- EFFECT ON CIVIL RIGHTS AND OFFICES. (1) A sentence of custody to the Idaho state board of correction suspends all the civil rights of the person so sentenced, including the right to refuse treatment authorized by the sentencing court, and forfeits all public offices and all private trusts, authority or power during such imprisonment: provided that any such person may bring an action for damages or other relief in the courts of this state or have an action brought against such person; and provided further that any such person may lawfully exercise all civil rights that are not political during any period of parole or probation, except the right to ship, transport, possess or receive a firearm, and the right to refuse treatment authorized by the sentencing court.

(2) Upon final discharge, a person convicted of any Idaho felony shall be restored the full rights of citizenship, except that for persons convicted of treason or those offenses enumerated in paragraphs (a) through (hh) of this subsection the right to ship, transport, possess or receive a firearm shall not be restored. As used in this subsection, "final discharge" means satisfactory completion of imprisonment, probation and parole as the case may be.

- (a) Aggravated assault (18-905, 18-915, Idaho Code);
- (b) Aggravated battery (18-907, 18-915, Idaho Code);
- (c) Assault with intent to commit a serious felony (18-909, 18-915, Idaho Code);
- (d) Battery with intent to commit a serious felony (18-911, 18-915, Idaho Code);
- (e) Burglary (18-1401, Idaho Code);
- (f) Domestic battery, felony (18-918, Idaho Code);
- (g) Enticing of children, felony (18-1509, Idaho Code);
- (h) Forcible sexual penetration by use of a foreign object (18-6604, Idaho Code);
- (i) Indecent exposure, felony (18-4116, Idaho Code);
- (j) Injury to child, felony (18-1501, Idaho Code);
- (k) Intimidating a witness, felony (18-2604, Idaho Code);
- (l) Lewd conduct with a minor or child under sixteen (18-1508, Idaho Code);
- (m) Sexual abuse of a child under sixteen (18-1506, Idaho Code);

1 (n) Sexual exploitation of a child (18-1507, Idaho Code);  
 2 (o) Felonious rescuing prisoners (18-2501, Idaho Code);  
 3 (p) Escape by one charged with, convicted of or on probation for a  
 4 felony (18-2505, Idaho Code);  
 5 (q) Unlawful possession of a firearm (18-3316, Idaho Code);  
 6 (r) Degrees of murder (18-4003, Idaho Code);  
 7 (s) Voluntary manslaughter (18-4006(1), Idaho Code);  
 8 (t) Assault with intent to murder (18-4015, Idaho Code);  
 9 (u) Administering poison with intent to kill (18-4014, Idaho Code);  
 10 (v) Kidnapping (18-4501, Idaho Code);  
 11 (w) Mayhem (18-5001, Idaho Code);  
 12 (x) Rape (18-6101, Idaho Code);  
 13 (y) Robbery (18-6501, Idaho Code);  
 14 (z) Ritualized abuse of a child (18-1506A, Idaho Code);  
 15 (aa) Cannibalism (18-5003, Idaho Code);  
 16 (bb) Felonious manufacture, delivery or possession with the intent to  
 17 manufacture or deliver, or possession of a controlled or counterfeit  
 18 substance (37-2732, Idaho Code);  
 19 (cc) Trafficking (37-2732B, Idaho Code);  
 20 (dd) Threats against state officials of the executive, legislative or  
 21 judicial branch, felony (18-1353A, Idaho Code);  
 22 (ee) Unlawful discharge of a firearm at a dwelling house, occupied  
 23 building, vehicle or mobile home (18-3317, Idaho Code);  
 24 (ff) Unlawful possession of destructive devices (18-3319, Idaho Code);  
 25 (gg) Unlawful use of destructive device or bomb (18-3320, Idaho Code);  
 26 (hh) Attempt (18-306, Idaho Code), conspiracy (18-1701, Idaho Code),  
 27 or solicitation (18-2001, Idaho Code), to commit any of the crimes de-  
 28 scribed in paragraphs (a) through (gg) of this subsection.  
 29 (ii) The provisions of this subsection shall apply only to those persons  
 30 convicted of the enumerated felonies in paragraphs (a) through (hh) of  
 31 this subsection on or after July 1, 1991, except that persons convicted  
 32 of the felonies enumerated in paragraphs (r) and (s) of this subsec-  
 33 tion, for any degree of murder or voluntary manslaughter, shall not be  
 34 restored the right to ship, transport, possess or receive a firearm,  
 35 regardless of the date of their conviction if the conviction was the  
 36 result of an offense committed by use of a firearm.  
 37 (3) A person not restored to the civil right to ship, transport, pos-  
 38 sess or receive a firearm may make application to the commission of pardons  
 39 and parole to restore the civil right to ship, transport, possess or receive  
 40 a firearm. The commission shall not accept any such application until five  
 41 (5) years after the date of final discharge. The commission shall conduct  
 42 the proceeding upon such application pursuant to rules adopted in accordance  
 43 with the law. The commission shall not restore the right to ship, transport,  
 44 possess or receive a firearm to any person convicted of murder in the first  
 45 degree (18-4003, Idaho Code), murder in the second degree (18-4003, Idaho  
 46 Code), or any felony enumerated in paragraphs (a) through (hh) of subsection  
 47 (2) of this section, upon which the sentence was enhanced for the use of a  
 48 firearm during the commission of said felony.  
 49 (4) Persons convicted of felonies in other states or jurisdictions, ex-  
 50 cept for persons convicted of treason, shall be allowed to register and vote

1 in Idaho upon final discharge which means satisfactory completion of impris-  
2 onment, probation and parole as the case may be. These individuals shall not  
3 have the right restored to ship, transport, possess or receive a firearm in  
4 the same manner as an Idaho felon as provided in subsection (2) of this sec-  
5 tion.

6 SECTION 2. An emergency existing therefor, which emergency is hereby  
7 declared to exist, this act shall be in full force and effect on and after  
8 July 1, 2026.